

PAIA MANUAL

Arbor Acres South Africa (Pty) Ltd



An Aviagen Brand

**Prepared in terms of section 51 of the Promotion of Access to
Information Act 2 of 2000 (as amended)**

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1. LIST OF ACRONYMS AND ABBREVIATIONS

1.1	“CEO”	Chief Executive Officer
1.2	“DIO”	Deputy Information Officer;
1.3	“IO”	Information Officer;
1.4	“Minister”	Minister of Justice and Correctional Services;
1.5	“PAIA”	Promotion of Access to Information Act No. 2 of 2000(as Amended;
1.6	“POPIA”	Protection of Personal Information Act No.4 of 2013;
1.7	“Regulator”	Information Regulator; and
1.8	“Republic”	Republic of South Africa

2. PURPOSE OF PAIA MANUAL

This PAIA Manual is useful for the public to-

- 2.1 check the categories of records held by a body which are available without a person having to submit a formal PAIA request;
- 2.2 have a sufficient understanding of how to make a request for access to a record of the body, by providing a description of the subjects on which the body holds records and the categories of records held on each subject;
- 2.3 know the description of the records of the body which are available in accordance with any other legislation;
- 2.4 access all the relevant contact details of the Information Officer and Deputy Information Officer who will assist the public with the records they intend to access;

- 2.5 know the description of the guide on how to use PAIA, as updated by the Regulator and how to obtain access to it;
- 2.6 know if the body will process personal information, the purpose of processing of personal information and the description of the categories of data subjects and of the information or categories of information relating thereto;
- 2.7 know the description of the categories of data subjects and of the information or categories of information relating thereto;
- 2.8 know the recipients or categories of recipients to whom the personal information may be supplied;
- 2.9 know if the body has planned to transfer or process personal information outside the Republic of South Africa and the recipients or categories of recipients to whom the personal information may be supplied; and
- 2.10 know whether the body has appropriate security measures to ensure the confidentiality, integrity and availability of the personal information which is to be processed.

3. KEY CONTACT DETAILS FOR ACCESS TO INFORMATION OF THE ARBOR ACRES SOUTH AFRICA

3.1. Chief Information Officer

Name: Arno van der Nat
Tel: +27 51 011 0025
Email: info@arboracres.co.za
Fax number: N/A

3.2. Deputy Information Officer

Name: Adriaan Brink Enslin
Tel: +27 51 011 0025
Email: info@arboracres.co.za
Fax Number: N/A

3.3 Access to information general contacts

Email: info@arboracres.co.za

3.4 National or Head Office

Postal Address: 48 President Steyn Ave, Westdene, Bloemfontein, 9301

Physical Address: 48 President Steyn Ave, Westdene, Bloemfontein, 9301

Telephone: +27 51 011 0025

Email: info@arboracres.co.za

Website: www.arboracres.co.za

4. GUIDE ON HOW TO USE PAIA AND HOW TO OBTAIN ACCESS TO THE GUIDE

4.1. The Regulator has, in terms of section 10(1) of PAIA, as amended, updated and made available the revised Guide on how to use PAIA ("Guide"), in an easily comprehensible form and manner, as may reasonably be required by a person who wishes to exercise any right contemplated in PAIA and POPIA.

4.2. The Guide is available in each of the official languages and in braille.

4.3. The aforesaid Guide contains the description of-

4.3.1. the objects of PAIA and POPIA;

4.3.2. the postal and street address, phone and fax number and, if available, electronic mail address of-

4.3.2.1. the Information Officer of every public body, and

4.3.2.2. every Deputy Information Officer of every public and private body designated in terms of section 17(1) of PAIA and section 56 of POPIA;

4.3.3. the manner and form of a request for-

4.3.3.1. access to a record of a public body contemplated in section 11; and

- 4.3.3.2. access to a record of a private body contemplated in section 50;
 - 4.3.4. the assistance available from the IO of a public body in terms of PAIA and POPIA;
 - 4.3.5. the assistance available from the Regulator in terms of PAIA and POPIA;
 - 4.3.6. all remedies in law available regarding an act or failure to act in respect of a right or duty conferred or imposed by PAIA and POPIA, including the manner of lodging-
 - 4.3.6.1. an internal appeal;
 - 4.3.6.2. a complaint to the Regulator; and
 - 4.3.6.3. an application with a court against a decision by the information officer of a public body, a decision on internal appeal or a decision by the Regulator or a decision of the head of a private body;
 - 4.3.7. the provisions of sections 14 and 51 requiring a public body and private body, respectively, to compile a manual, and how to obtain access to a manual;
 - 4.3.8. the provisions of sections 15 and 52 providing for the voluntary disclosure of categories of records by a public body and private body, respectively;
 - 4.3.9. the notices issued in terms of sections 22 and 54 regarding fees to be paid in relation to requests for access; and
 - 4.3.10. the regulations made in terms of section 92.
- 4.4. Members of the public can inspect or make copies of the Guide from the offices of the public and private bodies, including the office of the Regulator, during normal working hours.

4.5. The Guide can also be obtained-

4.5.1. upon request to the Information Officer;

4.5.2. from the website of the Regulator (<https://www.justice.gov.za/inforeg/>).

4.6 A copy of the Guide is also available in the following three official languages, for public inspection during normal office hours-

4.6.1. English, Afrikaans and Sesotho

5. CATEGORIES OF RECORDS OF THE ARBOR ACRES SOUTH AFRICA WHICH ARE AVAILABLE WITHOUT A PERSON HAVING TO REQUEST ACCESS

General information about Country Bird Holdings can be accessed via the internet on www.arboracres.co.za, which is available to all persons who have access to the internet.

6. DESCRIPTION OF THE RECORDS OF ARBOR ACRES SOUTH AFRICA WHICH ARE AVAILABLE IN ACCORDANCE WITH ANY OTHER LEGISLATION

Records available in terms of other legislation are as follows:

- 6.1 Administration of Estates Act, No. 66 of 1965
- 6.2 Arbitration Act No. 42 of 1965
- 6.3 Atmospheric Pollution Prevention Act 45 of 1965.
- 6.4 Banks Act No. 94 of 1990
- 6.5 Basic Conditions of Employment Act No. 75 of 1997
- 6.6 Bills of Exchange Act 34 of 1964
- 6.7 Broad-based Black Economic Empowerment Act 53 of 2003
- 6.8 Children's Act 38 of 2005;
- 6.9 Companies Act No 71 of 2008 and Applicable Regulations
- 6.10 Compensation for Occupational Injuries and Health Diseases Act No. 130 of 1993
- 6.11 Competition Act No. 89 of 1998
- 6.12 Consumer Affairs (Unfair Business Practice) Act No. 71 of 1988
- 6.13 Consumer Protection Act 68 of 2008
- 6.14 Copyright Act No. 98 of 1978
- 6.15 Currency and Exchanges Act No .9 of 1933
- 6.16 Customs and Excise Act, 55 of 1998;
- 6.17 Debt Collector's Act No. 114 of 1998
- 6.18 Electronic Communications Act, No. 36 of 2005;
- 6.19 Electronic Communications and Transactions Act No 25 of 2002
- 6.20 Employment Equity Act. No. 55 of 1998
- 6.21 Exchange Control Amnesty and Amendment of Taxation Laws Act of 2003
- 6.22 Explosives Act 26 of 1956.
- 6.23 Financial Advisory and Intermediary Services Act 37 of 2002
- 6.24 Financial Intelligence Centre Act No. 38 of 2001.
- 6.25 Financial Services Board Act No. 97 of 1990
- 6.26 Firearms Control Act 60 of 2000
- 6.27 Harmful Business Practices Act No. 23 of 1999

- 6.28 Hazardous Substances Act 15 of 1973
- 6.29 Health Professions Act 56 of 1974
- 6.30 Identification Act 68 of 1997
- 6.31 Immigration Act 13 of 2002
- 6.32 Income Tax Act No 58 of 1962
- 6.33 Insider Trading Act 135 of 1998
- 6.34 Insolvency Act No. 24 of 1936
- 6.35 Insurance Act No. 27 of 1943
- 6.36 Intellectual Property Laws Amendment Act No. 38 of 1997
- 6.37 Johannesburg Stock Exchange Listing Requirements
- 6.38 Labour Relations Act No 66 of 1995
- 6.39 Long –Term Insurance Act No. 52 of 1998
- 6.40 Medical Schemes Act 131 of 1998;
- 6.41 Medicines and Related Substances Act 101 of 1965
- 6.42 National Health Act 61 of 2003
- 6.43 Mine Health and Safety Act 29 of 1996
- 6.44 Mines and Works Act 27 of 1956
- 6.45 National Credit Act No. 34 of 2005
- 6.46 National Environmental Management Act 107 1998
- 6.47 National Water Act 36 of 1998.
- 6.48 Nonprofit Organisations Act No. 71 of 1997
- 6.49 Occupational Diseases in Mines and Works Act 78 of 1973
- 6.50 Occupational Health and Safety Act No. 85 of 1993
- 6.51 Pension Funds Act No 24 of 1956
- 6.52 Prevention and Combating of Corrupt Activities Act No 12 of 2004
- 6.53 Prevention of Organised Crime Act No. 121 of 1998
- 6.54 Promotion of Access to Information Act No.2 of 2000
- 6.55 Promotion of Equality and Prevention of Unfair Discrimination Act No. 4 of 2000
- 6.56 Protected Disclosures Act No. 26 of 2000
- 6.57 Protection of Personal Information Act 4 of 2013
- 6.58 Protection of Constitutional Democracy against Terrorist and Related Activities Act 33 of 2004
- 6.59 Regulation of Interception of Communication and Provision of Communications Act, No.2 of 2000
- 6.60 Regulation of Interception of Communications and Provisions of Communication Related
- 6.61 Road Accident Fund Act 56 of 1996;
- 6.62 Information Act No. 70 of 2002
- 6.63 SA Reserve Bank Act No. 90 of 1989
- 6.64 Second-Hand Goods Act No. 6 of 2009
- 6.65 Securities Services Act No. 36 of 2004
- 6.66 Securities Transfer Tax Act 25 of 2007
- 6.67 Skills Development Act 97 of 1998
- 6.68 Skills Development Levies Act No 9 of 1999
- 6.69 South African Reserve Bank Act No. 90 of 1989
- 6.70 South African Schools Act of 1996
- 6.71 Stock Exchanges Control Act No. 1 of 1985
- 6.72 Supreme Court Act No. 59 of 1959
- 6.73 Tobacco Products Control Act No 83 of 1993
- 6.74 Trade Marks Act 194 of 1993
- 6.75 Trust Property Control Act No. 57 of 1988
- 6.76 Unemployment Insurance Act No. 63 of 2001
- 6.77 Unemployment Insurance Contributions Act No 4 of 2002
- 6.78 Value Added Tax Act No 89 of 1991

7. DESCRIPTION OF THE SUBJECTS ON WHICH THE BODY HOLDS RECORDS AND CATEGORIES OF RECORDS HELD ON EACH SUBJECT BY THE ARBOR ACRES SOUTH AFRICA

The subjects on which the private body holds records and the categories on each subject in terms of Section 51(1)(e) are as listed below. Please note that a requester is not automatically allowed access to these records and that access to them may be refused in accordance with Sections 62 to 69 of the Act:

7.1 Companies Act Records

- 7.1.1 All trust deeds
- 7.1.2 Documents of Incorporation
- 7.1.3 Index of names of members of Close Corporation
- 7.1.4 Memorandum of Incorporation
- 7.1.5 Minutes of meeting of the Board of Directors
- 7.1.6 Minutes of meetings of Shareholders
- 7.1.7 Proxy forms
- 7.1.8 Register of debenture-holders
- 7.1.9 Register of directors' shareholdings
- 7.1.10 Research and development
- 7.1.11 Share certificates
- 7.1.12 Share Register and other statutory registers and/or records and/or documents
- 7.1.13 Special resolutions/Resolutions passed at General and Class meetings

7.2 Records relating to the appointment of

- 7.2.1 Auditors
- 7.2.2 Directors
- 7.2.3 Prescribed Officer
- 7.2.4 Public Officer
- 7.2.5 Secretary

7.3 Financial Records

- 7.3.1 Accounting Records
- 7.3.2 Annual Financial Reports
- 7.3.3 Annual Financial Statements
- 7.3.4 Asset Registers
- 7.3.5 Bank Statements
- 7.3.6 Banking details and bank accounts
- 7.3.7 Banking Records
- 7.3.8 Debtors / Creditors statements and invoices
- 7.3.9 General ledgers and subsidiary ledgers
- 7.3.10 General reconciliation
- 7.3.11 Invoices
- 7.3.12 Paid Cheques
- 7.3.13 Policies and procedures
- 7.3.14 Rental Agreements
- 7.3.15 Tax Returns

7.4 Income Tax Records

- 7.4.1 PAYE Records
- 7.4.2 Documents issued to employees for income tax purposes
- 7.4.3 Records of payments made to SARS on behalf of employees

- 7.4.4 All other statutory compliances:
- 7.4.5 VAT
- 7.4.6 Regional Services Levies
- 7.4.7 Skills Development Levies
- 7.4.8 UIF
- 7.4.9 Workmen's Compensation

7.5 Personnel Documents and Records

- 7.5.1 Accident books and records
- 7.5.2 Address Lists
- 7.5.3 Disciplinary Code and Records
- 7.5.4 Employee benefits arrangements rules and records
- 7.5.5 Employment Contracts
- 7.5.6 Employment Equity Plan
- 7.5.7 Forms and Applications
- 7.5.8 Grievance Procedures
- 7.5.9 Leave Records
- 7.5.10 Medical Aid Records
- 7.5.11 Payroll reports/ Wage register
- 7.5.12 Pension Fund Records
- 7.5.13 Safety, Health and Environmental records
- 7.5.14 Salary Records
- 7.5.15 SETA records
- 7.5.16 Standard letters and notices
- 7.5.17 Training Manuals
- 7.5.18 Training Records
- 7.5.19 Workplace and Union agreements and records

7.6 Procurement Department

- 7.6.1 Standard Terms and Conditions for supply of services and products
- 7.6.2 Contractor, client and supplier agreements
- 7.6.3 Lists of suppliers, products, services and distribution
- 7.6.4 Policies and Procedures.

7.7 Sales Department

- 7.7.1 Customer details
- 7.7.2 Credit application information
- 7.7.3 Information and records provided by a third party

7.8 Marketing Department

- 7.8.1 Advertising and promotional material

7.9 Risk Management and Audit

- 7.9.1 Audit reports
- 7.9.2 Risk management frameworks
- 7.9.3 Risk management plans

7.10 Safety, Health and Environment

- 7.10.1 Complete Safety, Health and Environment Risk Assessment
- 7.10.2 Environmental Managements Plans
- 7.10.3 Inquiries, inspections, examinations by environmental authorities

7.11 IT Department

- 7.11.1 Computer / mobile device usage policy documentation
- 7.11.2 Disaster recovery plans
- 7.11.3 Hardware asset registers
- 7.11.4 Information security policies/standards/procedures
- 7.11.5 Information technology systems and user manuals
- 7.11.6 Information usage policy documentation
- 7.11.7 Project implementation plans
- 7.11.8 Software licensing
- 7.11.9 System documentation and manuals

8. PROCESSING OF PERSONAL INFORMATION

8.1 Purpose of Processing Personal Information

- 8.1.1 To support sales and marketing activities
- 8.1.2 To support recruitment and management of staff, including medical information
- 8.1.3 To support engagement with suppliers
- 8.1.4 To support engagement with the general public
- 8.1.5 To support engagement with investors and the media

8.2 Description of the categories of Data Subjects and of the information or categories of information relating thereto

- 8.2.1 Customers: record of customer life cycle
- 8.2.2 Employees: record of employee life cycle
- 8.2.3 Suppliers: record of supplier life cycle
- 8.2.4 General public: tracking general enquiries and web site visits
- 8.2.5 Investors: records as maintained by the Company Secretary
- 8.2.6 Media: records of media interactions

8.3 The recipients or categories of recipients to whom the personal information may be supplied

- 8.3.1 Statutory authorities
- 8.3.2 Law enforcement
- 8.3.3 Tax authorities
- 8.3.4 Financial institutions
- 8.3.5 Medical schemes
- 8.3.6 Employee pension and provident funds
- 8.3.7 Industry bodies

8.4 Planned transborder flows of personal information

- 8.4.1 Flows to Foreign Authorities
- 8.4.2 Flows to service providers/operators
- 8.4.3 Flows to business partners
- 8.4.4 Flows to subsidiaries/business units
- 8.4.5 Flows to customers

- 8.4.6 Flows to suppliers
- 8.4.7 Flows through the use of social media

8.5 General description of Information Security Measures to be implemented by the responsible party to ensure the confidentiality, integrity and availability of the information

- 8.5.1 Physical security measures
- 8.5.2 Cyber security measures
- 8.5.3 Training in information security
- 8.5.4 Policies in information security
- 8.5.5 Audits of information security
- 8.5.6 Security framework implemented

9. AVAILABILITY OF THE MANUAL

9.1 A copy of the Manual is available-

- 9.1.1 on www.arboracres.co.za , if any;
- 9.1.2 head office of the Arbor Acres South Africa for public inspection during normal business hours;
- 9.1.3 to any person upon request and upon the payment of a reasonable prescribed fee; and
- 9.1.4 to the Information Regulator upon request.

9.2 A fee for a copy of the Manual, as contemplated in annexure B of the Regulations, shall be payable per each A4-size photocopy made.

10. UPDATING OF THE MANUAL

The head of a Arbor Acres South Africa will on a regular basis update this manual.

Issued by



Arno van der Nat

General Manager